

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carlmais Johnson	Team: Squad #16	CCRB Case #: 201605673	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Wednesday, 06/29/2016 5:18 PM	Location of Incident: Park Avenue at Saint Edwards Street	18 Mo. SOL 12/29/2017	Precinct: 88
Date/Time CV Reported Thu, 06/30/2016 12:21 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 06/30/2016 12:21 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Lisa Fernandez	18596	958585	088 PCT
2. POM Edgar Veras	01177	933453	088 PCT
3. POM Raymond Ng	18218	958448	088 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Edgar Veras	Abuse: Police Officer Edgar Veras stopped § 87(2)(b)	A . Exonerated
B . POM Raymond Ng	Abuse: Police Officer Raymond Ng stopped § 87(2)(b)	B . Exonerated
C . POF Lisa Fernandez	Abuse: Police Officer Lisa Fernandez stopped § 87(2)(b)	C . Exonerated
D . POM Edgar Veras	Abuse: Police Officer Edgar Veras detained § 87(2)(b)	D . Substantiated
E . POM Edgar Veras	Abuse: Police Officer Edgar Veras frisked § 87(2)(b)	E . Unsubstantiated
F . POM Edgar Veras	Abuse: Police Officer Edgar Veras searched § 87(2)(b)	F . Substantiated
G . POM Edgar Veras	Abuse: Police Officer Edgar Veras frisked § 87(2)(b)	G . Substantiated
H . POM Edgar Veras	Abuse: Police Officer Edgar Veras searched § 87(2)(b)	H . Substantiated
I . POM Edgar Veras	Force: Police Officer Edgar Veras used physical force against § 87(2)(b)	I . Unsubstantiated
J . POM Raymond Ng	Force: Police Officer Raymond Ng used physical force against § 87(2)(b)	J . Unsubstantiated
K . POM Raymond Ng	Force: Police Officer Raymond Ng used a chokehold against § 87(2)(b)	K . Unsubstantiated
L . POM Raymond Ng	Force: Police Officer Raymond Ng restricted § 87(2)(b)s breathing.	L . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint with the Civilian Complaint Review Board via the online website on June 30, 2016.

§ 87(2)(b)

On June 29, 2016, at approximately 5:18 p.m., § 87(2)(b) was inside Commodore Barry Park, located at Park Avenue at St. Edwards Street in Brooklyn, and was seated on a gate. In his possession was a Malta India beverage, which was packaged in a darkly-tinted glass bottle. Officer Raymond Ng, Officer Edgar Veras, and Officer Lisa Fernandez of the 88th Precinct approached § 87(2)(b). Please note that since the date of incident, Officer Fernandez has changed her surname to Santasieri, but she will be referred to as Officer Fernandez throughout the report. The following allegations arose: Officer Veras, Officer Ng, and Officer Fernandez stopped § 87(2)(b) (Allegation A, Allegation B, and Allegation C). Despite determining that § 87(2)(b) was not in possession of alcohol, Officer Veras detained § 87(2)(b) by placing him in handcuffs (Allegation D). After § 87(2)(b) was handcuffed, Officer Veras frisked and searched § 87(2)(b) at his waistband (Allegation E and Allegation F). Officer Veras also frisked § 87(2)(b) shoes (Allegation G) and searched him (Allegation H). Officer Veras and Officer Ng used force against § 87(2)(b) to push him against a vehicle (Allegation I and Allegation J). Officer Ng allegedly placed his forearm against the back of § 87(2)(b) neck to hold him against the vehicle, causing his breathing to be restricted (Allegation K and Allegation L). § 87(2)(b) was ultimately released with a summons for § 87(2)(b) (Board Review 03).

§ 87(2)(b) provided the investigation with video footage that he recorded during the incident. Snag-It portions of the video can be found below. Only Snag-It Video 1 has video, while the rest are only audio. The original video can be found under Board Review 02 and the transcription can be found under Board Review 04. The Snag-It videos can be found under Board Reviews 22 through 25.



201605673 Video 1.mp4



201605673 Video 2.mp4



201605673 Video 3.mp4



201605673 Video 4.mp4

This case was originally assigned to Investigator Leanne Fornelli. The case was reassigned to Investigator William Parker Maclure on August 5, 2016 upon Investigator Fornelli's departure from the agency. This case was reassigned to IM Carlmais Johnson on January 19, 2017. § 87(2)(b) This case is being submitted for review past the 90-day benchmark due to case reassignment § 87(2)(g).

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- The New York Comptroller's Office indicated that § 87(2)(b) has not filed a civil court suit regarding this incident as of October 18, 2016 (Board Review 16).

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Edgar Veras stopped § 87(2)(b)

Allegation B – Abuse of Authority: Police Officer Raymond Ng stopped § 87(2)(b)

Allegation C – Abuse of Authority: Police Officer Lisa Fernandez stopped § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b)

All parties agree that Officer Veras, Officer Ng, and Officer Fernandez stopped § 87(2)(b) because he was in possession of a brown glass beverage bottle. § 87(2)(g)

In his statement to the CCRB, § 87(2)(b) conceded that at the time of his interaction with police, he was holding a Malta beverage that came in a darkly-tinted glass bottle (Board Review 01). He provided an image of the bottle at the time of his interview (Board Review 05).

In his statement to the CCRB, Officer Veras indicated that and his partners had been tasked with conducting enforcement in Commodore Barry Park to target people who were drinking alcohol (Board Review 06). As they drove past the location, they observed § 87(2)(b) holding a brown glass bottle in a paper bag. Officer Veras believed the bag contained an open container of alcohol, specifically a bottle of Coors Light beer. Officer Ng and Officer Fernandez also indicated that they had observed § 87(2)(b) and so the officers decided to stop him to inquire about the bottle in his possession. Officer Ng and Officer Fernandez provided accounts that were consistent with that of Officer Veras (Board Review 10 and Board Review 12).

According to the legal precedent established in People v. DeBour, 40 N.Y.2d 210, officers are permitted to stop an individual when they have reasonable suspicion to believe that he is committing a crime (Board Review 08). However, a crime is defined as a felony or misdemeanor. New York City Admin Code 10-125(2)(b) prohibits the consumption of alcohol and being in possession of an open container of alcohol on streets or in public places (Board Review 14). This prohibition only constitutes a violation.

§ 87(2)(g)

It is therefore recommended that **Allegation A**, **Allegation B**, and **Allegation C** be closed as **Exonerated**.

Allegation D – Abuse of Authority: Police Officer Edgar Veras detained § 87(2)(b)

§ 87(2)(g)

All parties agree that the officers stopped § 87(2)(b) so that they could determine whether he was committing a crime by being in possession of a container of alcohol, and that the officers placed § 87(2)(b) in handcuffs shortly after approaching him. All parties further agree that § 87(2)(b) was kept in handcuffs after the officers had determined that he was not in possession of alcohol and therefore was not committing any crime.

§ 87(2)(b) alleged that Officer Veras kept him in handcuffs after he had already determined that § 87(2)(b) was not in possession of alcohol. He further alleged that Officer Veras frisked, searched, and used force against him while he protested the interaction.

In his CCRB statement, Officer Veras confirmed that after he confirmed that § 87(2)(b) was not in possession of alcohol, he did not remove the handcuffs from § 87(2)(b) because he wanted to get his identification to identify him and to check whether he had any open warrants.

In the United States v. Sharpe, 470 U.S. 675 (1985), the Supreme Court established that while there is no time limit for officers to conduct an investigative stop, the rule for evaluating the reasonableness of an investigative stop will be whether the officer's action was justified at its inception, and whether it was reasonably related in scope to the circumstances which justified the interference in the first place (Board Review 18). In the case Royer v. Florida, 460 U.S. 491 (1983), the court established that "an investigative detention must be temporary and last no longer than is necessary to effectuate the purpose of the stop." It goes on to add that the investigative methods employed by the police should be the least intrusive means reasonably available to verify or dispel the officer's suspicion in a short period of time." Thus, the ultimate question is whether the detention was sufficiently limited in scope and duration to accomplish its legitimate purpose in a reasonable manner and time frame (Board Review 19).

Further, in the case People v. Ryan, 12 N.Y. 3d 28, 876 N.Y.S.2d 672, 904 N.E.2d 808 (2009), a Court of Appeals held that temporary detention is unlawful if effectuated solely to make it more convenient to arrest a defendant, and that officers "cannot place a defendant under arrest in order to obtain sufficient evidence to arrest him" (Board Review 20).

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation D** be closed as **Substantiated**.

Allegation E – Abuse of Authority: Police Officer Edgar Veras frisked § 87(2)(b)

Allegation F – Abuse of Authority: Police Officer Edgar Veras searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that after he was placed in handcuffs, Officer Veras patted him on the shirt, waistband, and pockets (Board Review 01). In protest, § 87(2)(b) exclaimed, “Why are you patting me down?” At the time of the frisk, § 87(2)(b) said that he had the following items in his pockets: keys, a wallet, glasses, and possibly a vaporizer; he did not recall what other items were in his possession.

The video provided by § 87(2)(b) has only audio at this portion of the recording (Board Review 22-25). While § 87(2)(b) is heard protesting a search, he makes no mention of being patted down.

Officer Veras indicated that after § 87(2)(b) was placed in handcuffs, he observed a rectangular bulge on § 87(2)(b) waistband. He described the bulge as seven inches long and four inches wide. Officer Veras believed that the bulge was a knife in a knife pouch. He then lifted § 87(2)(b) shirt to ensure that he did not have any weapons in his possession. Upon lifting the shirt, he observed that the bulge was caused by a cell phone holster. Officer Veras did not take any further actions towards § 87(2)(b) waistband.

While Officer Ng affirmed that he observed Officer Veras frisk § 87(2)(b) he did not recall what part of § 87(2)(b) body was frisked. He did not say that he observed anything that made him believe § 87(2)(b) was in possession of a weapon, and did not discuss the frisk with Officer Veras (Board Review 10). Officer Fernandez testified to the CCRB that no frisk was conducted; instead she said that § 87(2)(b) was searched immediately after he was placed in handcuffs (Board Review 12). She did not state that she believed that § 87(2)(b) was in possession of a weapon.

According to People v. Du Bour, 40 N.Y.2d 210 (1976), officers are permitted to conduct a frisk when they have reasonable suspicion to believe that an officer is in possession of a weapon (Board Review 08).

However, as indicated by court decisions in People v. Ventura, 139 A.D. 2d 196 (1988), and People v. Marine, 142 A.D.2d 368 (1989), a frisk may not be predicated solely on the existence of an undefinable bulge in a pocket. Additionally, in the People v. Graham, 134 A.D.3d 1047 (2015), the courts held that a search of a pocket that was conducted “without prior visual observations of a weapon and without first conducting a pat down of the outside of the pocket” was impermissible (Board Review .

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation E** be closed as **Unsubstantiated**.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is recommended **Allegation F** be closed as **Substantiated**.

Allegation G – Abuse of Authority: Police Officer Edgar Veras frisked § 87(2)(b)

§ 87(2)(b) alleged that in addition to frisking him on his waistband area, Officer Veras also frisked his legs down to his ankles (Board Review 01).

In his testimony to the CCRB, Officer Veras stated that after he frisked § 87(2)(b) waistband, he then patted § 87(2)(b) shoes to make sure that there was nothing hidden there (Board Review 06). Officer Veras had no specific recollection about § 87(2)(b) shoes, even to say what type of shoes he was wearing, and provided no explanation of whether or why he believed that the shoes contained contraband. Further, he made no statement indicating that § 87(2)(b) took any actions with respect to this area of his body during the incident.

Neither Officer Ng nor Officer Fernandez indicated that they observed Officer Veras conduct a frisk of § 87(2)(b) shoes (Board Review 10 and Board Review 12).

As noted above, officers are only permitted to frisk when the reasonably suspect that a civilian is in possession of a weapon, People v. Du Bour (Board Review 08).

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation G** be closed as **Substantiated**.

Allegation H – Abuse of Authority: Police Officer Edgar Veras searched § 87(2)(b)

§ 87(2)(b) stated that after he was handcuffed and frisked, Officer Veras reached into § 87(2)(b) pants pockets and told him that he was doing so to determine if § 87(2)(b) was in possession of a weapon. Officer Veras then removed § 87(2)(b) wallet from his right rear pants pocket, but repeated that he was searching for weapons. Officer Veras ultimately obtained § 87(2)(b) identification, but when § 87(2)(b) told Officer Veras that his identification did not contain his full name, Officer Veras then searched through other items in the wallet until he found a credit card with § 87(2)(b) full name.

Officer Veras stated that after he determined that § 87(2)(b) was not in possession of an open container of alcohol, he asked § 87(2)(b) who was handcuffed, for his identification. He said he did so because he wanted to know who § 87(2)(b) was and whether he had any open warrants. He also indicated that he ultimately intended to issue § 87(2)(b) a summons for disorderly conduct. When § 87(2)(b) responded to his request with profanity, Officer Veras placed his hand inside § 87(2)(b) rear pants pocket, removed his wallet from the pocket, and searched through the wallet until he located § 87(2)(b) New York State identification. Officer Veras used the identification to run a check of § 87(2)(b) arrest history. Officer Veras never indicated that the purpose of his search was based on a fear for his safety.

In the absence of a need to take protective measures or other evidence that his safety was threatened, the only potential basis for a search would have been if there existed probable cause to make an arrest. However, in People v. Reid, 24 N.Y.3d 615 (2014), the New York Court of appeals held that the search incident to arrest doctrine requires proof that, at the time of the search, an arrest has already occurred or is about to occur (Board Review 09). It further notes that if an officer expresses a desire to issue a citation instead of an arrest, then no claim of a search incident to an arrest can be made.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation H** be closed as **Substantiated**.

Allegation I – Force: Police Officer Edgar Veras used physical force against § 87(2)(b)

Allegation J – Force: Police Officer Raymond Ng used physical force against § 87(2)(b)

§ 87(2)(b) alleged that after he told Officer Veras to stop searching him, he moved away from Officer Veras by twisting his body, though his actions were limited by a nearby gate. In response, Officer Veras and Officer Ng slammed § 87(2)(b) onto the hot hood of the patrol car and held him against the hood by holding his right arm, shoulder, and side.

As noted above, § 87(2)(b) cell phone was in his pocket and therefore only the audio portion of the recording is available. The only thing that is audible on the recording is § 87(2)(b) telling Officer Veras, “Get the fuck off of me,” followed by the sound of something hitting a hollow surface. After this point, the recording becomes muffled. Approximately 30 seconds later, § 87(2)(b) can be heard saying, “Get off my head. Get the fuck off my head. Yo, videotape this! Somebody record this! Videotape this! Somebody record this! You’re hurting me! Get off me! Somebody videotape this.”

§ 87(2)(g) Officer Veras stated that the struggle with § 87(2)(b) occurred not as he attempted to search § 87(2)(b) but instead when the officers attempted to place him in handcuffs. Officer Veras stated that after § 87(2)(b) refused to voluntarily place his hands behind his back, he grabbed § 87(2)(b) left hand and put a cuff on it. He believed that § 87(2)(b) intended to punch him, but based this belief only on the manner in which § 87(2)(b) was speaking with the police. Officer Veras also affirmed that § 87(2)(b) did not make any motions that indicated that he would strike Officer Veras or say anything that indicated that he would strike Officer Veras. According to Officer Veras, § 87(2)(b) then flailed his arms, and Officer Ng grabbed § 87(2)(b) right arm. Officer Veras and Officer Ng then brought § 87(2)(b) hands behind his back and completed the handcuffing process.

Officer Ng, who also indicated that force was used in order to handcuff § 87(2)(b) stated that as Officer Veras approached § 87(2)(b) Officer Veras attempted to look into the paper bag to determine whether there was alcohol inside. In response, § 87(2)(b) pushed Officer Veras’ hand away, though he could not describe this action further. According to Officer Ng, Officer Veras then handcuffed § 87(2)(b) without his assistance. He did not specify how Officer Veras ultimately handcuffed § 87(2)(b).

Officer Fernandez noted that she was standing 3 to 4 feet away when the physical interaction occurred. She stated that when Officer Veras approached § 87(2)(b) he moved his shoulder and leg towards Officer Veras in what she characterized as an attempt to strike Officer Veras with his shoulder or an attempt to kick him. She was uncertain whether § 87(2)(b) succeeded in making physical contact with Officer Veras. Officer Fernandez simply indicated that Officer Veras then quickly placed § 87(2)(b) in handcuffs, though she did not specify how this was done.

According to Patrol Guide Procedure 221-01, officers are permitted to use force when it is “reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody to prevent escape from custody” (Board Review 21).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

it is recommended that **Allegation I** and **Allegation J** be closed as **Unsubstantiated**.

Allegation K – Force: Police Officer Raymond Ng used a chokehold against § 87(2)(b)

Allegation L – Force: Police Officer Raymond Ng restricted § 87(2)(b) s breathing.

§ 87(2)(g)

[REDACTED]

§ 87(2)(b) who had been placed in handcuffs, stated that as Officer Ng and Officer Veras held him against the police vehicle, Officer Ng placed his forearm on the back of § 87(2)(b) neck, applied pressure, and held him down on the hood of the vehicle. At the same time, Officer Ng pulled up on his hands. Officer Ng held § 87(2)(b) down for approximately five minutes.

Officer Ng stated that once § 87(2)(b) was handcuffed, he began to flail, attempted to step away, kick, and throw his shoulders at Officer Veras. From Officer Ng’s angle, it looked like § 87(2)(b) made successfully struck Officer Veras with his shoulder. Officer Ng said that these actions made him fearful for his safety and that of Officer Veras. Officer Ng then grabbed § 87(2)(b) and placed him against the hood of the police vehicle so that he was bent over the vehicle with his chest on the hood in order to stop § 87(2)(b) movements. He stated, however, that he made contact with § 87(2)(b) shoulder and denied that he ever made contact with or putting pressure on § 87(2)(b) neck. He further denied placing § 87(2)(b) in a “chokehold” or doing anything to restrict his breathing. Officer Ng affirmed that § 87(2)(b) complained that he was unable to breathe. In response, Officer Ng maintained his pressure on § 87(2)(b) shoulder.

§ 87(2)(g) though Officer Veras did not indicate that § 87(2)(b) hit him with his shoulder or was otherwise successful in his efforts to strike Officer Veras. He stated that Officer Ng grabbed § 87(2)(b) by the shoulders and pushed him forward onto the hood of the vehicle. Officer Ng then held § 87(2)(b) against the hood, with one hand on § 87(2)(b) back and the other hand holding his wrist. He noted that Officer Ng did not make physical contact with § 87(2)(b) neck. As Officer Ng held § 87(2)(b) against the hood, he complained that he could not breathe because the Officer Ng was putting too

much pressure on him and because the hood of the vehicle was hot. He claimed that Officer Ng told § 87(2)(b) that his breathing was not restricted because he was able to curse, at which point, § 87(2)(b) stopped cursing. Officer Ng held § 87(2)(b) against the hood of the vehicle for approximately ten minutes. Officer Fernandez provided an account that was identical to that of Officer Veras.

As noted above, because of the position of the camera phone that made the recording, there is no visual portion of the recording when force was used against § 87(2)(b) only the audio is available. In the audio recording at the 2:47 minute mark, § 87(2)(b) can be heard saying, “Record this. He’s hurting my neck. He’s putting pressure on my neck. I can’t breathe. I can’t breathe, you Chinese piece of shit.” He later states, “Record this! Record this! I can’t breathe, he’s putting pressure on my neck,” “My hands are behind my back, cuffed, and he’s got pressure on my neck. I can’t breathe. I can’t breathe,” and “Record this guy on my neck. Hurry up. Get his arm on my neck.”

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

Therefore, it is recommended that **Allegation K** and **Allegation L** be closed as **Unsubstantiated**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date